

STATE OF NEW YORK

1838--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. EACHUS, ROZIC, ALVAREZ, HEVESI, McDONOUGH, BAILEY, CHANG, SOLAGES, LEVENBERG, SAYEGH -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to the sale and possession of self-defense spray devices

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph 14 of subdivision a of section 265.20 of the penal law, as added by chapter 354 of the laws of 1996, is amended to read as follows:

14. Possession in accordance with the provisions of this paragraph of a self-defense spray device as defined herein for the protection of a person or property and use of such self-defense spray device under circumstances which would justify the use of physical force pursuant to article thirty-five of this chapter.

(a) As used in this section "self-defense spray device" shall mean a pocket sized spray device which contains and releases a chemical or organic substance which is intended to produce temporary physical discomfort or disability through being vaporized or otherwise dispensed in the air or any like device containing tear gas, pepper or similar disabling agent. Notwithstanding any law, rule, or regulation to the contrary, the contents of every self-defense spray device shall not contain more than 1.33 percent by weight total capsaicinoids.

(b) The exemption under this paragraph shall not apply to a person who:

(i) is less than eighteen years of age; or

(ii) has been previously convicted in this state of a felony or any assault; or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (iii) has been convicted of a crime outside the state of New York
2 which if committed in New York would constitute a felony or any assault
3 crime.

4 (c) The department of health, with the cooperation of the division of
5 criminal justice services and the superintendent of state police, shall
6 develop standards and promulgate regulations regarding the type of self-
7 defense spray device which may lawfully be purchased, possessed and used
8 pursuant to this paragraph. The regulations shall include a requirement
9 that every self-defense spray device which may be lawfully purchased,
10 possessed or used pursuant to this paragraph have a label which states:
11 "WARNING: The use of this substance or device for any purpose other than
12 self-defense is a criminal offense under the law. The contents are
13 dangerous - use with care. This device shall not be sold by anyone other
14 than a licensed or authorized dealer. Possession of this device by any
15 person under the age of eighteen or by anyone who has been convicted of
16 a felony or assault is illegal. Violators may be prosecuted under the
17 law."

18 (d) Every self-defense spray device shall be accompanied by an insert
19 or inserts which include directions for use, first aid information,
20 safety and storage information and which shall also contain a toll-free
21 telephone number for the purpose of allowing any purchaser to call and
22 receive additional information regarding the availability of local
23 courses in self-defense training and safety in the use of a self-defense
24 spray device.

25 (e) Before delivering a self-defense spray device to any person, the
26 seller shall require proof of age.

27 § 2. Subparagraph (b) of paragraph 15 of subdivision a of section
28 265.20 of the penal law, as added by chapter 354 of the laws of 1996, is
29 amended to read as follows:

30 (b) Before delivering a self-defense spray device to any person, the
31 licensed or authorized dealer shall require proof of age [~~and a sworn~~
32 ~~statement on a form approved by the superintendent of state police that~~
33 ~~such person has not been convicted of a felony or any crime involving an~~
34 ~~assault. Such forms shall be forwarded to the division of state police~~
35 ~~at such intervals as directed by the superintendent of state police.~~
36 ~~Absent any such direction the forms shall be maintained on the premises~~
37 ~~of the vendor and shall be open at all reasonable hours for inspection~~
38 ~~by any peace officer or police officer, acting pursuant to his or her~~
39 ~~special duties]. No more than two self-defense spray devices may be sold
40 at any one time to a single purchaser.~~

41 § 3. This act shall take effect immediately.